

Ram Prasad Gupta v. State of U.P.

Allahabad High Court · Division Bench · 26 September 2024 · 2024:AHC:157855-DB · WRIT - C No. 28041 of 2024 ·
Assessment withdrawn as unsustainable; writ disposed with liberty to redo.

HEADNOTE

A final assessment passed without any independent finding on theft or unauthorized use of electricity is contrary to Paragraph 6.8 of the U.P. Electricity Supply Code, 2005. After the Chief Engineer admitted the 19 July 2024 assessment was unsustainable and withdrew it, the Division Bench disposed of the writ with liberty to pass a fresh order strictly in accordance with law.

FACTUAL SUMMARY

Ram Prasad Gupta challenged a final assessment dated 19 July 2024 of the Executive Engineer, Vidhut Vitran Khand, Ghazipur. On 12 September 2024 the Court stayed recovery and directed the Chief Engineer to examine the facts, noting a similar order by the same officer in another writ. The Chief Engineer later admitted by personal affidavit that the order was unsustainable and had been withdrawn, with a fresh notice issued for objections. Show-cause notices had also issued to the Superintending and Executive Engineers for lapses in monitoring and procedure.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

independent findings on theft or UUE in final assessment

HOLDING

Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 requires the assessing officer to record an independent finding relating to theft or unauthorized use of electricity; a final assessment lacking such findings is contrary to that paragraph and cannot stand. ¶ 2

FLAG Paragraph 6.8 applied to theft or UUE without distinguishing Clause 8 theft assessment.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THEFT OR UNAUTHORIZED USE AND ANY FRESH ASSESSMENT

The 19 July 2024 assessment was withdrawn as unsustainable; respondents were given liberty to pass a fresh order strictly in accordance with law. ¶ 3-5